

		Accordingly, the demurrer is SUSTAINED with 20 days leave to amend as to Defendant's defense that Plaintiff's claims are made in bad faith. The <u>reminder of the demurrer</u> is OVERRULED. Plaintiff to give notice.
3.	30-2025-01454243 Guarino vs. Obradovich	1. Case Management Conference 2. Motion to Strike Portions of Complaint Defendant Piper Anne Obradovich ("Obradovich") moves this Court for an Order striking from the Complaint the prayer for punitive damages (Prayer, page 3, ¶ 14(a)(2)). Multiple authorities exist which address punitive damages, specifically, in the context of alleged drunk driving. Most notable, the California Supreme Court in <i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, concluded that "the act of operating a motor vehicle while intoxicated may constitute an act of 'malice' under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous consequences." (<i>Id.</i> at p. 892.) The court expressly acknowledged that "conscious disregard" may constitute malice, and elaborated: "In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he wilfully and deliberately failed to avoid those consequences." (<i>Id.</i> at pp. 895-896.) The Court in <i>Taylor</i> examined a complaint which alleged: "Defendant became intoxicated and thereafter drove a car while in that condition, despite his knowledge of the safety hazard he created thereby." (<i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 896.) The Court noted that the above was "the essential gravamen of the complaint," and further noted that "while a history of prior arrests, convictions and mishaps may heighten the probability and foreseeability of an accident, we do not deem these aggravating factors essential prerequisites to the assessment of punitive damages in drunk driving cases." (<i>Ibid.</i>) In finding the allegations therein sufficient to support punitive damages, the Court explained: "There is a very commonly understood risk which attends every motor vehicle driver who is intoxicated." (<i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 896-897.) "One who willfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others. The effect may be lethal whether or not the driver had a prior history of drunk driving incidents." (<i>Id.</i> at p. 897.) The court also noted that drunk driving is an extremely serious national problem, and one upon which punitive damages can have a positive impact. (<i>Ibid.</i>) In <i>Peterson v. Superior Court</i> (1982) 31 Cal. 3d 147, the California Supreme Court again found allegations of intoxicated driving sufficient to support a claim of punitive damages where facts were alleged that the Defendant knew of the probable serious injury to others from his drunk driving. (<i>Id.</i> at p. 163.) The Court in <i>Peterson</i> specifically noted that the Complaint therein "allege[d] that defendant drove the vehicle with knowledge that probable serious injury to other persons would result and in conscious disregard of the safety of plaintiff." (<i>Ibid.</i>) In finding the Complaint therein sufficient, the Court in <i>Peterson</i> explained: "The gravamen of the proposed complaint, as of the complaint in <i>Taylor</i>, is that '[d]efendant became intoxicated and thereafter

		drove a car while in that condition, despite his knowledge of the safety hazard he created thereby.” (<i>Id.</i> at p. 163.) Taking the above into consideration, punitive damages are appropriate where the complaint alleges sufficient facts to demonstrate Defendant “became intoxicated and thereafter drove a car while in that condition, despite his knowledge of the safety hazard he created thereby.” (<i>Peterson v. Superior Court</i> (1982) 31 Cal. 3d 147, 163.) In this instance, Plaintiffs plead: “Defendant Piper Anne Obradovich was driving at an unsafe speed, in violation of California Vehicle Code Section 22350, and failed to maintain a speed that would allow her to stop safely within the assured clear distance ahead, also in violation of California Vehicle Code Section 21658. Additionally, Defendant Piper Anne Obradovich was driving under the influence of alcohol, in violation of California Vehicle Code Section 23152(a). As a result of these violations, Defendant Piper Anne Obradovich was unable to stop in time and rear-ended the vehicle Plaintiff Colby James Guarino and Plaintiff Madeline Mary Zimmerman were in.” [Judicial Council Form Complaint, 2nd cause of action ¶GN-1.] Plaintiffs fail to plead Defendant Obradovich became intoxicated and thereafter drove a car while in that condition, despite her knowledge of the safety hazard she created thereby. Rather, they simply pled she was driving under the influence of alcohol in addition to other violations. Therefore, the Defendant Obradovich motion to strike is GRANTED with 20 days leave to amend. To the extent arguments are made on Defendant Hamm’s behalf, the Court did not consider them. The notice of motion lists only Defendant Obradovich as the party bringing the Motion and the Court notes Defendant Hamm filed an Answer on 4/23/2025. Any attempt by Defendant Hamm to be included in this Motion is untimely. [CCP§435(b)(1).] Moving Party to give notice.
6.	30-2025-01470269 Finger vs. FCA US, LLC	1. Case Management Conference 2. Demurrer to Complaint 3. Motion to Strike Complaint <u>Demurrer</u> Defendant FCA US LLC (“Defendant”) demurs to the third and sixth causes of action in Plaintiff Richard Finger’s (“Plaintiff”) Complaint. <u>Third Cause of Action for Violation Civil Code section 1793.2(a)(3)</u> Civil Code section 1793.2(a)(3) provides, “Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall: . . . (3) Make